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CASE NAME: Kasabian, v. Arora

CASE NO.: 24SMCV01479

MOTION: Motion

for Summary Judgment

HEARING DATE: 8/4/2026

Legal

Standard

A party may move for summary judgment in any action or proceeding if it is contended the action has no merit or that there is no defense to the action or proceeding. (CCP, § 437c(a).) "The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.)

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs." (CCP, §

437c(f)(1).) If a party seeks summary adjudication as an alternative to a request for summary judgment, the request must be clearly made in the notice of the motion. (*Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1544.) “[A] party may move for summary adjudication of a legal issue or a claim for damages other than punitive damages that does not completely dispose of a cause of action, affirmative defense, or issue of duty pursuant to” subdivision (t). (CCP, § 437c(t).)

To prevail, the evidence submitted must show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (CCP, § 437c(c).) The motion cannot succeed unless the evidence leaves no room for conflicting inferences as to material facts; the court has no power to weigh one inference against another or against other evidence. (*Murillo v. Rite Stuff Food Inc.* (1998) 65 Cal.App.4th 833, 841.) In determining whether the facts give rise to a triable issue of material fact, “[a]ll doubts as to whether any material, triable, issues of fact exist are to be resolved in favor of the party opposing summary judgment...” (*Gold v. Weissman* (2004) 114 Cal.App.4th 1195, 1198-99.) “In other words, the facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences therefrom must be accepted as true.” (*Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 179.) However, if adjudication is otherwise proper the motion “may not be denied on grounds of credibility,” except when a material fact is the witness’s state of mind and “that fact is sought to be established solely by the [witness’s] affirmation thereof.” (CCP, § 437c(e).)

Once the moving party has met their burden, the burden shifts to the opposing party “to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.” (CCP § 437c(p)(1).) “[T]here is no obligation on the opposing party... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element... necessary to sustain a judgment in his favor.” (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.)

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“The pleadings play a key role in a summary judgment motion. The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues and to frame the outer measure of materiality

in a summary judgment proceeding.” (Hutton v. Fidelity National Title Co., (2013) 213 Cal.App.4th 486, 493, quotations and citations omitted.) “Accordingly, the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability, as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings.” (Ibid.)

EVIDENTIARY ISSUES

Defendant’s objections are OVERRULED.

Analysis

Defendant Radha Arora moves for summary judgment against Plaintiff Misak Kasabian’s Complaint.

The Complaint states two causes of action for general negligence and premises liability. The elements of negligence are: 1) a legal duty owed to plaintiff to use due care; 2) breach of duty; 3) causation; and 4) damage to plaintiff. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.) Premises liability is a form of negligence. To establish a cause of action for premises liability, a plaintiff must allege: 1) that the defendant owned, leased, occupied or controlled the property; 2) defendant was negligent in the use, maintenance or management of the property; 3) the plaintiff was harmed; and 4) defendant’s negligence was a substantial factor in causing plaintiff’s harm. (Brooks v. Eugene Burger Management Corp. (1989) 215 Cal.App.3d 1611, 1619.) “Those who own, possess, or control property generally have a duty to exercise ordinary care in managing the property in order to avoid exposing others to an unreasonable risk of harm.” (Annocki v. Peterson Enterprises, LLC (2014) 232 Cal.App.4th 32, 37.) The elements of breach of that duty and causation are ordinarily questions of fact for the jury’s determination. (Vasquez v. Residential Investments, Inc. (2004) 118 Cal.App.4th 269, 278.)

The Complaint alleges that on December 28, 2022, Plaintiff was injured as a result of Defendant’s failure to inspect, repair and maintain and/or negligently inspecting, repairing and maintaining the driveway upon which plaintiff fell. (Compl., p. 4.) Plaintiff was walking toward the driver’s side of his limousine that he was operating to transport

Defendant, when he tripped and fell on the slippery dangerous driveway. (Id.) Defendant failed to inspect, control and maintain the subject premises despite knowledge, or the ability to have knowledge of the dangerous condition and took no action to warn pedestrian and/or allowed the dangerous condition to exist for such a length of time that if defendants had exercised reasonable care in inspecting the premises, they would have discovered the dangerous condition in time to remedy it or give warning before plaintiff was injured. (Id.) As a result, Plaintiff was damaged. (Id.)

Defendant provides background information on the claim, which is mostly consistent with the allegations. Plaintiff was working as a chauffeur on the incident date. (UMF 3.) Plaintiff had driven defendant Arora to and/or from his home five or more times prior to the incident date. (UMF 4.) As a limousine driver, Plaintiff admits that he is always careful to ensure the environment is safe for him and his passengers. (UMF 5.) Plaintiff, having been to the property five or more times before, did not believe the property was unsafe. (UMF 6.) Plaintiff arrived at Defendant's home around 5:45 a.m. on the incident date. (UMF 7.) As Plaintiff arrived, Defendant opened the gate to the property for Plaintiff, who then back up to the front door and exited the vehicle to help Defendant with his bags. (UMF 8.) Plaintiff received a bag from Defendant and placed it in the trunk. (UMF 9.) Plaintiff then walked around and opened a rear door for Defendant. (UMF 10.) After closing Mr. Arora's door, Plaintiff walked behind the car, walking between the vehicle's bumper and the back porch of the house. (UMF 11.) As Plaintiff attempted to walk around the car from behind, he fell. (UMF 12.)

Defendant largely relies on deposition testimony suggesting Plaintiff does not recall the precise mechanisms of his fall. For instance, Plaintiff was not looking at the ground as he walked. (UMF 13.) In addition, Plaintiff does not recall if he stepped in the gaps between the driveway pads. (UMF 14.) An image of the driveway provided shows that the driveway consists of square slabs of concrete, approximately 36" x 36", with approximately 1.5" of artificial grass separating the slabs. (See also Burns Decl., ¶ 8.) Plaintiff recalls that it was dark and raining, but he does not recall if he could see the ground. (UMF 15.) Plaintiff does not recall when he felt either of his feet begin to slip. (UMF 16.) He also testified that he first realized something out of the ordinary was happening he was making his right turn around the car, when he "just fell and hit the ground" and does not recall anything else. (UMF 17.) Defendant asserts that Plaintiff lacks an independent recollection of actually slipping, feeling the sensation of slipping,

or if any foot slipped and, instead, admittedly has no idea what happened except that he fell. (UMF 18.) Defendant uses this evidence to negate the allegations of causation. (Mot. at 9-10.)

Strictly construed, this evidence does not support the inference that there is no causation between the dangerous condition of Defendant's driveway and Plaintiff's slip and fall. The complete record does not demonstrate that Plaintiff lacks any evidence that the allegedly dangerous condition of the property caused his injuries. The fact that Plaintiff does not specifically remember the fall, or what specific surface of the driveway Plaintiff slipped on, is not dispositive on causation. (See *Kaney v. Custance* (2022) 74 Cal.App.5th 201, 217 [trial court concluded that plaintiff's "inability to remember the fall meant that she lacked nonspeculative evidence of causation. This was error. A slip-and-fall plaintiff need not remember her fall to recover damages provided the evidence gives rise to a reasonable and probable inference that the defendant's negligence was a substantial contributing factor"].) Defendant has not presented evidence that there is no causation between the allegedly unsafe condition of the driveway and Plaintiff's slip/fall. Liberally construed in favor of the nonmoving party, Plaintiff's testimony establishes that he slipped due to the condition of Defendant's property, i.e., the wet and slippery surfaces of the driveway. Plaintiff's testimony does not show that he is only guessing that he slipped from the slippery condition of the driveway. The circumstances presented lead to the opposite conclusion – that Plaintiff slipped due to the wet conditions of the driveway. It is undisputed that the driveway, including the concrete slabs and grass between the slabs, were wet and likely slippery, since it was raining. (UMF 15.) Defendant does not present other evidence which might negate such testimony. For example, Defendant does not contest the allegations that the surface of the driveway were dangerous.

Plaintiff would also present a dispute of material fact concerning causation. Plaintiff cites omitted deposition testimony that Plaintiff's feet slipped underneath him while walking on the driveway. (UMF 16; Kasabian Depo. at 105:6-8.) Plaintiff stated that he believed that his right foot started to slip first. (Kasabian Depo. at 105:9-13.) When asked if he had an independent recollection of his feet slipping or a slipping sensation, Plaintiff affirmed that he did. (Kasabian Depo. at 106:9-11, 107:1-9.) Moreover, when defense counsel asserted that Plaintiff did not know if he slipped, Plaintiff re-affirmed that he slipped and hit the ground. (Kasabian Depo. at 111:8-19.) Further, Plaintiff consistently affirms in his

declaration that he slipped and fell due to the slippery conditions on the driveway. (Kasabian Decl., ¶ 13.) Plaintiff also presents substantial evidence that the conditions of driveway could be considered an unreasonably dangerous condition, although Defendant never attacked this alleged element of the claim. (Burns Decl., ¶¶ 12-18.) The record also establishes that both components of the driveway (the concrete slabs as well as the artificial grass) are both dangerous conditions. Thus, whether Plaintiff slipped on the concrete or grass, the dangerousness and causation of both potential conditions are supported.

Accordingly, the motion is DENIED.